



CHAPTER 29.

An Act to make provision as to the liability to war service of the nationals of allied Powers, to define for the purposes of the Allied Forces Act, 1940, membership of certain allied and associated forces, and to remove doubts as to the powers of imprisoning or detaining persons sentenced by service courts exercising jurisdiction by virtue of that Act.

[6th August 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) His Majesty may by Order in Council provide for the application of this section to men who are nationals of a Power specified in the Order, being a Power allied with His Majesty, and who are in Great Britain at the time when the Order comes into operation, or subsequently enter Great Britain.

Liability to service of nationals of allied Powers.

(2) Where any person to whom this section applies is not, at the expiration of two months from the material date, a member of the naval, military or air forces of the Power of which he is a national, the National Service Acts, 1939 to 1941, shall thereafter apply to him as if he were a British subject and any proclamation previously issued under the said Acts, which would have applied to him if he had been a British subject in Great Britain at the date of the proclamation, shall thereafter be deemed to apply to him:

Provided that, in the case of any person who holds a certificate of exemption issued by the Government of the Power of which he is a national, the said Acts shall not apply to him while the certificate is in force.

(3) The expression "the material date" shall, in relation to any person to whom this section applies, have the following meaning :—

- (a) if he was, at the date of any proclamation issued under the National Service Acts, 1939 to 1941, before this section applied to him, within the limits of age specified for men in that proclamation, it means the date on which this section first applied to him ;
- (b) in any other case, it means the date on which a proclamation issued under the said Acts first specifies for men limits of age within which he falls.

Registration
of persons
liable for
service.

2 & 3 Geo. 6.
c. 81.

2. Where the Minister of Labour and National Service is satisfied, in the case of any person liable to be called up for service under the National Service Acts, 1939 to 1941, as applied by this Act, that sufficient particulars are available for the purpose of registration under the said Acts, without requiring him to furnish particulars and to apply for registration under section two of the National Service (Armed Forces) Act, 1939, the Minister may dispense with those requirements and enter his name and address together with such particulars as he considers necessary in the military service register, and shall thereupon issue to him a certificate of registration in the form prescribed by regulations made by the Minister under the said Act.

Evidence of
certain
matters.

3.—(1) For the purposes of any proceedings under or arising out of the National Service Acts, 1939 to 1941, as applied by this Act—

- (a) a certificate issued by a Secretary of State that a person of the name and description specified in the certificate is, or was at a time so specified, registered under the Aliens Restriction Acts, 1914 and 1919, as a national of a Power so specified shall be sufficient evidence that he is, or was at that time, a national of that Power, unless the contrary is proved ;
- (b) a certificate issued by a Secretary of State that a person of the name and description specified in the certificate entered Great Britain at a time so specified shall be sufficient evidence of that fact, unless the contrary is proved ; and
- (c) a certificate issued by the government of any Power that a person of the name and description specified in the certificate is not, or was not at a time so specified, a member of the naval, military or air forces of that Power shall be conclusive evidence of that fact.

(2) For the purposes of any such proceedings as aforesaid in which it is necessary to prove in relation to any party to the

proceedings any of the matters specified in paragraphs (a), (b) and (c) of the last foregoing subsection, a certificate issued under that subsection relating to a person bearing the name in which that party is charged or appears in the proceedings shall, unless the contrary is proved, be deemed to relate to that party.

(3) Any document purporting to be a certificate issued under subsection (1) of this section by a Secretary of State or, as the case may be, by the government of a Power, and to be signed by or on behalf of the Secretary of State or on behalf of the government of that Power, shall be received in evidence, and shall, unless the contrary is proved, be deemed to be a certificate so issued by the Secretary of State or, as the case may be, the government of that Power.

(4) It is hereby declared, for the avoidance of doubt, that subsection (1) of section eleven of the National Service Act, 1941, so far as it relates to the proof of age, shall apply in any case where it is necessary to show, for the purposes of the prosecution of any person under the National Service Acts, 1939 to 1941, as applied by this Act, for an offence mentioned in the said subsection, that he was, at the date of any such proclamation as is referred to in subsection (3) of section one of this Act, within the limits of age specified in that proclamation. 4 & 5 Geo. 6.
c. 15.

(5) For the purposes of this Act, the time at which a person attains a relevant age shall be deemed to be, according to the law in force elsewhere than Scotland as well as according to the law in force in Scotland, the commencement of the relevant anniversary of the date of his birth.

4. The foregoing provisions of this Act shall extend to the Isle of Man, and accordingly the references therein to Great Britain shall be construed as including references to the Isle of Man, and those provisions shall have effect, in relation to the Isle of Man, as if the references to the National Service Acts, 1939 to 1941, or to any provision thereof, were construed as references to those Acts or that provision as they apply or as it applies to the Isle of Man, and as if for the reference to the Minister of Labour and National Service there were substituted a reference to the Lieutenant-Governor, or a deputy or acting Governor, of the Isle of Man. Extension to
Isle of Man.

5.—(1) For the purposes of the Allied Forces Act, 1940, a person shall be deemed to be a member of the naval, military or air forces of any such allied Power or foreign authority as is mentioned in section one of that Act, if he has served in those forces on or after the date of the passing of that Act and has not been duly discharged therefrom, but a person who has not so served shall not be deemed to be a member of any such forces by reason of his having been called upon to serve therein. Definition of
member of
force for
purposes of
Allied Forces
Act and
removal of
doubts arising
therefrom.
3 & 4 Geo. 6.
c. 51.

(2) It is hereby declared for the removal of doubt that if any person, while a member of the naval, military or air forces of any such allied Power or foreign authority as aforesaid, has been sentenced by a service court of the allied Power or a service court constituted by the foreign authority, as the case may be, to imprisonment or detention, he may be imprisoned or detained under subsection (2) of section two of the Visiting Forces (British Commonwealth) Act, 1933, as applied to those forces under subsection (3) of section one of the Allied Forces Act, 1940, notwithstanding that he has ceased, whether by virtue of the sentence or otherwise, to be a member of those forces.

23 & 24
Geo. 5. c. 6.

Expenses.

6. Any expenses incurred by the Minister of Labour and National Service, a Secretary of State, or any other Minister of the Crown in consequence of the passing of this Act shall be defrayed out of moneys provided by Parliament.

Short title.

7. This Act may be cited as the Allied Powers (War Service) Act, 1942.

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